

AGREEMENT TO SELL

Dated 5th October, 2024

This Agreement to Sell ("Agreement") is made and executed at Gurugram between Manpreet Sidhu, son of Sh. Balraj Sidhu, residing at House No. 88, DLF Phase III, Gurugram - 122002, Haryana (hereinafter referred to as the "Vendor", which expression shall unless repugnant to the context include his legal heirs, successors and assigns), of the ONE PART, and Karan Vohra, residing at House No. 214, Sector 47, Gurugram - 122018, Haryana (hereinafter referred to as the "Vendee", which expression shall unless repugnant to the context include his legal heirs, successors and assigns), of the OTHER PART.

WHEREAS the Vendor is the absolute and lawful owner in possession of the property bearing Khasra No. 142/18, admeasuring 1,800 square yards, situated at Village Sikanderpur, Tehsil Gurugram and known as Plot No. 27, Sector 56, Gurugram - 122011, Haryana ("the said Property"), having purchased the same vide registered Sale Deed dated 12.03.2019 (Ex. P-3), free from all encumbrances, charges or liens of any nature whatsoever;

AND WHEREAS the Vendor has agreed to sell and the Vendee has agreed to purchase the said Property for the total sale consideration and on the terms and conditions recorded below;

NOW THEREFORE THIS AGREEMENT WITNESSETH AS FOLLOWS:

CLAUSE 1 -- AGREEMENT TO SELL

The Vendor hereby agrees to sell, and the Vendee hereby agrees to purchase, the said Property, more particularly described above, free from all encumbrances, together with all rights, easements and appurtenances attached thereto.

CLAUSE 2 -- SALE CONSIDERATION

The total sale consideration for the said Property is agreed at Rs. 2,85,00,000 (Rupees Two Crore Eighty Five Lakh Only).

CLAUSE 3 -- EARNEST MONEY

The Vendee has paid to the Vendor a sum of Rs. 57,00,000 as earnest money on execution of this Agreement, receipt of which the Vendor hereby acknowledges, evidenced by separate receipts issued contemporaneously (Ex. P-2).

CLAUSE 4 -- BALANCE CONSIDERATION AND COMPLETION

The balance sale consideration of Rs. 2,28,00,000 shall be paid by the Vendee to the Vendor on or before 05.04.2025, simultaneously with and against execution and registration of the sale deed in favour of the Vendee or his nominee(s) before the jurisdictional Sub-Registrar.

CLAUSE 5 -- DELIVERY OF POSSESSION

Vacant, physical possession of the said Property shall be delivered by the Vendor to the Vendee simultaneously with execution and registration of the sale deed, the said Property being presently vacant land free from any tenancy or third-party occupation.

CLAUSE 6 -- TITLE AND ENCUMBRANCES

The Vendor represents and warrants that he has clear, marketable and unencumbered title to the said Property, that the same is free from any mortgage, charge, lien, lis pendens, acquisition proceeding or attachment, and undertakes to procure and furnish an encumbrance certificate for the relevant period prior to registration.

CLAUSE 7 -- TAXES AND OUTGOINGS

All property tax, cess and other outgoings in respect of the said Property up to the date of execution of the sale deed shall be borne and discharged by the Vendor, and thereafter by the Vendee.

CLAUSE 8 -- TIMELINE FOR COMPLETION

The parties shall use their best efforts to complete the sale transaction, including execution and registration of the sale deed, on or before the date specified in Clause 4 above; no separate notice making time essential shall be required to be issued for the due date already fixed under this Clause to remain operative.

ORIGINAL SEEN

CLAUSE 9 -- DEFAULT BY THE VENDOR

In the event the Vendor fails or neglects to execute the sale deed by the due date despite the Vendee being ready and willing to pay the balance consideration, the Vendee shall, without prejudice to any other right or remedy, be entitled to seek specific performance of this Agreement, or, in the alternative, refund of the earnest money paid together with damages.

CLAUSE 10 -- DEFAULT BY THE VENDEE

In the event the Vendee fails to tender the balance consideration by the due date without any extension agreed in writing, the earnest money paid shall be liable to forfeiture at the option of the Vendor, without prejudice to the Vendor's other rights.

CLAUSE 11 -- REGISTRATION AND EXPENSES

Stamp duty, registration charges and incidental expenses for execution and registration of the sale deed shall be borne by the Vendee.

CLAUSE 12 -- GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of India, and the Courts at Gurugram alone shall have jurisdiction over any dispute arising out of or in connection with this Agreement.

CLAUSE 13 -- ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties in relation to the said Property and supersedes all prior negotiations, understandings and correspondence on the subject.

IN WITNESS WHEREOF the parties have set their hands on the date first above written, in the presence of the witnesses named below.

Vendor: Manpreet Sidhu

Vendee: Karan Vohra

Witness 1: _____

Witness 2: _____